

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF NEW YORK -----X MATTHEW NORDEN, Plaintiff, -against- THE CITY OF NEW YORK, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, RIDGEBACK LLC, ZEN BIKES, JOHN KEOSHGERIAN, MARIA RAMOS AND JOSEPH GARCIA, Defendants. -----X	VERIFIED AMENDED COMPLAINT Index No.:159206/20E
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Plaintiff, Matthew Norden, by his attorneys, **CALLAN & BYRNES, LLP.**,
complaining of the defendants, respectfully alleges, upon information and belief, as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF MATTHEW NORDEN**

1. That plaintiff, Matthew Norden, is over the age of 18 and a resident
of County and State of New York.
2. That the cause of action alleged herein arose in the County and State
of New York.
3. That on January 28, 2020 and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where
the injuries and damages were sustained, together with plaintiff's demands for

adjustment thereof was duly served on the claimant's behalf on the Comptroller for the **CITY OF NEW YORK** and that thereafter said Comptroller for the **CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced

4. That on March 12, 2020, a Supplemental Notice of Claim reflecting the dismissal of all the criminal charges against the claimant/plaintiff was served on behalf of the plaintiff on the Comptroller for the **CITY OF NEW YORK**, and that thereafter said Comptroller for the **CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on August 4, 2020, a 50-H hearing was held of the plaintiff, Matthew Norden.

6. That this action falls within one or more of the exemptions set forth in CPLR §1602.

7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. That on November 27, 2019, and at all times herein mentioned, defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly

organized and existing under and by virtue of the laws of the State of New York.

9. That defendant, **THE CITY OF NEW YORK**, is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, by its agents, servants and/or employees, operated and maintained a Police department within the boundaries of the City of New York and more particularly in the County of State of New York.

11. That defendant, **THE CITY OF NEW YORK**, by its agents, servants and/or employees, operates and maintains a Police Department within the boundaries of the City of New York and more particularly in the County of New York and State of New York.

12. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, maintained and operated a unit of their Police Department known as the Grand Larceny Division located at 530 West 126th Street 2nd floor N.Y., N.Y. 10027.

13. That defendant, **THE CITY OF NEW YORK**, presently maintains and operates a unit of their Police Department known as the Grand Larceny Division located at 530 West 126th Street 2nd floor N.Y., N.Y. 10027.

14. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, maintained and operated a unit of their Police Department known as the Facial Identification Section.

15. That defendant, **THE CITY OF NEW YORK**, presently maintains and operates a unit of their Police Department known as the Facial Identification Section.

16. That on November 27, 2019 and prior thereto, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441.

17. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a police officer.

18. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a detective.

19. That on November 27, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a police officer working in the Grand Larceny Division of its police department.

20. That defendant, **THE CITY OF NEW YORK**, presently employs defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a police officer.

21. That defendant, **THE CITY OF NEW YORK**, presently employs defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a detective.

22. That on October 30, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441.

23. That on October 30, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a police officer.

24. That on October 30, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a detective.

25. That on October 30, 2019, defendant, **THE CITY OF NEW YORK**, employed defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, as a police officer working in the Grand Larceny Division of its police department.

26. That prior to November 27, 2019. defendant, **THE CITY OF NEW YORK**, hired and retained, defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441.

27. That prior to November 27, 2019. defendant, **THE CITY OF NEW YORK**, hired and trained and supervised, defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441.

28. That prior to November 27, 2019, defendant, **THE CITY OF NEW YORK**, created a division within its police department called the Grand Larceny Unit.

29. That the division of the defendant, **THE CITY OF NEW YORK'S**, police department known as the Grand Larceny Unit currently remains in existence.

30. That prior to November 27, 2019, defendant, **THE CITY OF NEW YORK**, created guidelines detailing how the division of its police department known as the Grand Larceny Division should: a) conduct an investigation into the circumstances surrounding any alleged crime; b) determine whether a crime was in fact committed'; c) determine the veracity of any alleged witnesses to a crime; d) obtain and review evidence of an alleged crime; e) effectuate valid arrests; and f) treat suspects accused of alleged crimes.

31. That prior to November 27, 2019, defendant, **THE CITY OF NEW YORK**, created what is known as the Facial Identification Section of its police

deparment.

32. That the Facial Identification Section of the defendant, **THE CITY OF NEW YORK's**, police department, is still in existence today.

33. That defendant, **THE CITY OF NEW YORK**, when it created the Facial Identification Section of its police department, prior to November 27, 2019, established and created guidelines, rules and procedures to prevent misidentification, abuse and misuse of such facial identification technology by the members of its police department, including, but not limited to defendant, **POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441**.

34. That defendant, Ridgeback LLC, is a limited liability company formed under the laws of the State of New York.

35. That defendant, Ridgeback LLC, was formed on September 14, 2009.

36. That defendant, Ridgeback LLC, is authorized to conduct business in the State of New York.

37. That defendant, Ridgeback LLC, conducts business in New York.

38. That defendant, Ridgeback LLC, conducts business in New York under the name of Zen Bikes.

39. That defendants, John Keoshgerian and Maria Ramos, are the sole shareholders of defendant, Ridgeback LLC.

40. That defendant, Ridgeback LLC, owns defendant, Zen Bikes.

41. That on October 30, 2019, defendant, Ridgeback LLC, was a domestic limited liability company, authorized to do business in the State of New York.

42. That on November 27, 2019, defendant, Ridgeback LLC, was a domestic limited liability company, authorized to do business in the State of New York.

43. That on October 30, 2019, defendant, Ridgeback LLC, conducted business within the State of New York at 134 West 24th Street N.Y., N.Y. 10011-1902.

44. That on November 27, 2019, defendant, Ridgeback LLC, conducted business within the State of New York at 134 West 24th Street N.Y., N.Y. 10011-1902.

45. That on October 30, 2019, defendant, Ridgeback LLC, conducted business within the State of New York at 134 West 24th Street N.Y., N.Y. 10011-1902 under the name of Zen Bikes.

46. That on November 27, 2019, defendant, Ridgeback LLC, conducted business within the State of New York at 134 West 24th Street N.Y., N.Y. 10011-1902 under the name of Zen Bikes.

47. That on October 30, 2019, defendant, Ridgeback LLC, owned defendant, Zen Bikes.

48. That on November 27, 2019, defendant, Ridgeback LLC, owned defendant, Zen Bikes.

49. That defendant, Ridgeback LLC, owned defendant, Zen Bikes, on February 26, 2020.

50. That on October 30, 2019, defendant, Ridgeback LLC, was owned by defendants, John Keoshgerian and Maria Ramos.

51. That on November 27, 2019, defendant, Ridgeback LLC, was owned by defendants, John Keoshgerian and Maria Ramos.

52. That on February 26, 2020, defendants, John Keoshgerian and Maria Ramos, owned defendant, Ridgeback LLC.

53. That defendant, Ridgeback LLC, is owned by defendants, John Keoshgerian and Maria Ramos.

54. That on October 30, 2019, defendants, John Keoshgerian and Maria Ramos, were the sole shareholders of defendant, Ridgeback LLC.

55. That on November 27, 2019, defendants, John Keoshgerian and Maria Ramos, were the sole shareholders of defendant, Ridgeback LLC.

56. That on February 26, 2020, defendants, John Keoshgerian and Maria Ramos, were the sole shareholders of defendant, Ridgeback LLC.

57. That on October 30, 2019, defendant, Zen Bikes, was a subsidiary of defendant, Ridgeback LLC.

58. That on November 27, 2019, defendant, Zen Bikes, was a subsidiary of defendant, Ridgeback LLC.

59. That on February 26, 2020, defendant, Zen Bikes, was a subsidiary of defendant, Ridgeback LLC.

60. That defendant, Zen Bikes, is a subsidiary of defendant, Ridgeback LLC.

61. That on October 30, 2019, defendant, Ridgeback LLC, employed defendant, Joseph Garcia.

62. That on November 27, 2019, defendant, Ridgeback LLC, employed defendant, Joseph Garcia.

63. That defendant, Ridgeback LLC, employed defendant, Joseph Garcia, on February 26, 2020.

64. That defendant, Ridgeback LLC, presently employs defendant, Joseph Garcia.

65. That on October 30, 2019, defendant, Ridgeback LLC, employed defendant, John Keoshgerian.

66. That on November 27, 2019, defendant, Ridgeback LLC, employed defendant, John Keoshgerian.

67. That on February 26, 2020, defendant, Ridgeback LLC, employed defendant, John Keoshgerian.

68. That defendant, Ridgeback LLC, currently employs defendant, John Keoshgerian.

69. That on October 30, 2019, defendant, Ridgeback LLC, employed defendant, Maria Ramos.

70. That on November 27, 2019, defendant, Ridgeback LLC, employed defendant, Maria Ramos.

71. That on February 26, 2020, defendant, Ridgeback LLC, employed defendant, Maria Ramos.

72. That defendant, Ridgeback LLC, presently employs defendant, Maria Ramos.

73. That prior to October 30, 2019, defendant, Ridgeback LLC, by its agents, servants and/or employees, hired and retained defendant, Joseph Garcia.

74. That prior to October 30, 2019, defendant, Ridgeback LLC, by its agents, servants and/or employees, trained and supervised, defendant, Joseph Garcia.

75. That on October 30, 2019, defendant, Ridgeback LLC, employed defendant, Joseph Garcia, at their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

76. That on October 30, 2019, defendant, Ridgeback LLC, supervised defendant, Joseph Garcia's, actions while he working at their store known as Zen

Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

77. That from October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, supervised defendant, Joseph Garcia's, actions while he working at their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

78. That from October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, employed defendant, Joseph Garcia.

79. That from October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, employed defendant, Joseph Garcia, at their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

80. That from October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, paid defendant, Joseph Garcia, a salary.

81. That defendant, Ridgeback LLC, employed defendant, Joseph Garcia, from October 30, 2019 to February 26, 2020, at their store known as Zen Bikes which at the time was located at 134 West 24th Street New York, New York 10011-1902.

82. That under the doctrine of respondeat superior, defendant, Ridgeback LLC, is responsible for the actions of its employee, Joseph Garcia, while he was working at their store known as Zen Bikes formerly located at 134 West 24th Street New York, New York 10011-1902 from October 30, 2019 to February 26, 2020.

83. That from October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, had an obligation and duty to prevent their employees, including but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes, which was located at 134 West 24th Street New York, New York 10011-1902 from alleging false and misleading claims of bicycle theft with defendant, The City of New York's, Police Department.

84. That from October 30, 2019 to February 26, 2020, defendant, Ridgeback LLC, had an obligation and duty to train its employees, including but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes, which was located at 134 West 24th Street New York, New York 10011-1902, to obtain a valid form of photo identification and a valid credit card in the customer's name, from a customer, before allowing that customer to take a bicycle out of the store for a test drive without first paying for it.

85. That on October 30, 2019 through February 26, 2020, defendant, Ridgeback LLC, had a duty to properly supervise its employees, such as defendant, Joseph Garcia, working at their store known as Zen Bikes, formerly located at 134 West 24th Street New York, New York 10011-1902, to ensure that they did not allow bicycle theft to occur from said store by allowing a customer to take a bicycle out of their store without paying for it and without first providing a valid form of photo identification and a valid credit card.

86. That between October 30, 2019 and November 27, 2019, defendant, Ridgeback LLC, by its employee, defendant, Joseph Garcia, alleged to defendant, City of New York, that on October 30, 2019, a Specialized Sirrus Pro bicycle, had been stolen from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

87. That between October 30, 2019 and November 27, 2019, defendant, Ridgeback LLC, by its employee, defendant, Joseph Garcia, alleged to defendant, City of New York, that on October 30, 2019, plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

88. That on October 30, 2019, defendant, Ridgeback LLC, by its employee, Joseph Garcia, allowed an unknown man to walk into their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902 and leave with a Specialized Sirrus Pro bicycle without leaving a valid form of photo identification, without leaving a valid credit card and without first paying for said bicycle.

89. That on October 30, 2019, defendant, Ridgeback LLC, by and through its employees, including, but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902, did nothing to prevent an unknown man from leaving said store with a

Specialized Pro bicycle without paying for it.

90. That on October 30, 2019, defendant, Ridgeback LLC, by its employees, agents and servants, including, but not limited to defendant, Joseph Garcia, had a duty to take reasonable precautions to prevent the theft of bicycles from their store then known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

91. That from October 30, 2019 to February 26, 2020, defendant, Ridgeback LLC, had a duty to investigate the veracity of their employee, Joseph Garcia's, claim that on October 30, 2019, the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes located at 134 West 24th Street New York, New York 10011-1902.

92. That between October 30, 2019 and February 26, 2020, defendant, Ridgeback LLC, had a duty to take reasonable measures to ascertain the identity of the person who allegedly stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902 before accusing the plaintiff, Matthew Norden, of doing so.

93. That between October 30, 2019 and February 26, 2020, defendant, Ridgeback LLC, by its employees, agents and/or servants, including but not limited to defendant, Joseph Garcia, accused the plaintiff, Matthew Norden, whom they had never met, of stealing a Specialized Sirrus Pro bicycle in broad daylight, during

store hours, from their store known as Zen Bikes which was located 134 West 24th Street New York, New York 10011-1902 on October 30, 2019.

94. That on October 30, 2019 defendant, Zen Bikes, was a sole proprietorship authorized under the laws of the State of New York to conduct business in New York State.

95. That on October 30, 2019 through February 26, 2020, defendant, Zen Bikes, was the name that defendant, Ridgeback LLC, did business as in New York State.

96. That from October 30, 2019 to February 26, 2020, defendant, Zen Bikes, was owned by defendant, Ridgeback LLC.

97. That from October 30, 2019 to February 26 2020, defendant, Zen Bikes, was a sole proprietorship authorized under the laws of the State of New York to conduct business in New York State.

98. That defendant, Zen Bikes, is a sole proprietorship authorized under the laws of the State of New York to conduct business in New York State.

99. That on October 30, 2019, defendant, Zen Bikes. by its agents, servants, employees and/or independent contractors, sold bicycles and bicycling supplies within New York City, and more particular, within New York County, from its store located at 134 West 24th Street New York, New York 10011-1902.

100. That on November 27, 2019, defendant, Zen Bikes, by its agents, servants, employees and/or independent contractors, sold bicycles and bicycling supplies within New York City, and more particularly, within New York County, from its store located at 134 West 24th Street New York, New York 10011-1902.

101. That on from October 30, 2019 to February 26 2020, defendant, Zen Bikes, by its agents, servants, employees and/or independent contractors, sold bicycles and bicycling supplies within New York City, and more particularly, within New York County, from its store located at 134 West 24th Street New York, New York 10011-1902.

102. That defendant, Zen Bikes, by its agents, servants, employees and/or independent contractors, sells bicycles and bicycling supplies within New York City, and more particularly, within New York County.

103. That from October 30, 2019 to February 26, 2020, defendant, Zen Bikes, was owned by defendant, John Keoshgerian.

104. That on October 30, 2019, defendant, Zen Bikes, was owned by defendant, John Keoshgerian.

105. That on November 27, 2019 defendant, Zen Bikes, was owned by defendant, John Keoshgerian.

106. That defendant, Zen Bikes, is owned by defendant, John Keoshgerian.

107. That from October 30, 2019 to February 26, 2020, defendant, Zen Bikes, was owned by defendant, Maria Ramos.

108. That from October 30, 2019 defendant, Zen Bikes, was owned by defendant, Maria Ramos.

109. That November 27, 2019 defendant, Zen Bikes, was owned by defendant, Maria Ramos.

110. That defendant, Zen Bikes, is owned by defendant, Maria Ramos.

111. That on October 30, 2019, defendant, Zen Bikes, was jointly owned by defendants, John Keoshgerian and Maria Ramos.

112. That on November 27, 2019, defendant, Zen Bikes, was jointly owned by defendants, John Keoshgerian and Maria Ramos.

113. That from October 30, 2019 through February 26, 2020, defendant, Zen Bikes, was jointly owned by defendants, John Keoshgerian and Maria Ramos.

114. That defendant, Zen Bikes, is jointly owned by defendants, John Keoshgerian and Maria Ramos.

115. That on October 30, 2019, defendant, Zen Bikes, employed defendant, Joseph Garcia.

116. That on October 30, 2019, defendant, Zen Bikes, employed defendant, Joseph Garcia, at it store located at 134 West 24th Street New York, New York 10011-1902.

117. That on November 27, 2019, defendant, Zen Bikes, employed defendant, Joseph Garcia.

118. That on November 27, 2019, defendant, Zen Bikes, employed defendant, Joseph Garcia, at it store located at 134 West 24th Street New York, New York 10011-1902.

119. That defendant, Zen Bikes, employed defendant, Joseph Garcia, from October 30, 2019 through February 26, 2020.

120. That defendant, Zen Bikes, currently employs defendant, Joseph Garcia.

121. That prior to October 30, 2019, defendant, Zen Bikes, by its agents, servants and/or employees, hired and retained defendant, Joseph Garcia.

122. That prior to October 30, 2019, defendant, Zen Bikes, by its agents, servants and/or employees, trained and supervised, defendant, Joseph Garcia.

123. That on October 30, 2019, defendant, Zen Bikes, supervised defendant, Joseph Garcia's, actions while he working at their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

124. That from October 30, 2019 through February 26, 2020, defendant, Zen Bikes, supervised defendant, Joseph Garcia's, actions while he working at their store known as Zen Bikes which was located at 134 West 24th Street New York,

New York 10011-1902.

125. That from October 30, 2019 through February 26, 2020, defendant, Zen Bikes, employed defendant, Joseph Garcia, at their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

126. That from October 30, 2019 through February 26, 2020, defendant, Zen Bikes, paid defendant, Joseph Garcia, a salary.

127. That under the doctrine of respondeat superior, defendant, Zen Bikes, is responsible for the actions of its employee, Joseph Garcia, while he was working at their store known as Zen Bikes formerly located at 134 West 24th Street New York, New York 10011-1902 from October 30, 2019 to February 26, 2020.

128. That from October 30, 2019 through February 26, 2020, defendant, Zen Bikes, had an obligation and duty to prevent their employees, including but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes, which was located at 134 West 24th Street New York, New York 10011-1902 from alleging false and misleading claims of bicycle theft with defendant, The City of New York's, Police Department.

129. That from October 30, 2019 to February 26, 2020, defendant, Zen Bikes, had an obligation and duty to train its employees, including but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes, which was located at 134 West 24th Street New York, New York 10011-1902, to obtain a valid

form of photo identification and a valid credit card in the customer's name, from a customer, before allowing that customer to take a bicycle out of the store for a test drive without first paying for it.

130. That on October 30, 2019 through February 26, 2020, defendant, Zen Bikes, had a duty to properly supervise its employees, such as defendant, Joseph Garcia, working at their store known as Zen Bikes, formerly located at 134 West 24th Street New York, New York 10011-1902, to ensure that they did not allow bicycle theft to occur from said store by allowing a customer to take a bicycle out of their store without paying for it and without first providing a valid form of photo identification and a valid credit card.

131. That between October 30, 2019 and November 27, 2019, defendant, Zen Bikes, by its employee, defendant, Joseph Garcia, alleged to defendant, City of New York, that on October 30, 2019, a Specialized Sirrus Pro bicycle, had been stolen from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

132. That between October 30, 2019 and November 27, 2019, defendant, Zen Bikes, by its employee, defendant, Joseph Garcia, alleged to defendant, City of New York, that on October 30, 2019, plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902.

133. That on October 30, 2019, defendant, Zen Bikes, by its employee, Joseph Garcia, allowed an unknown man to walk into their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902 and leave with a Specialized Sirrus Pro bicycle without leaving a valid form of photo identification, without leaving a valid credit card and without first paying for said bicycle.

134. That on October 30, 2019, defendant, Zen Bikes, by and through its employees, including, but not limited to defendant, Joseph Garcia, working at their store known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902, did nothing to prevent an unknown man from leaving said store with a Specialized Pro bicycle without paying for it.

135. That on October 30, 2019, defendant, Zen Bikes, by its employees, agents and servants, including, but not limited to defendant, Joseph Garcia, had a duty to take reasonable precautions to prevent the theft of bicycles from their store then known as Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

136. That from October 30, 2019 to February 26, 2020, defendant, Zen Bikes, had a duty to investigate the veracity of their employee, Joseph Garcia's, claim that on October 30, 2019, the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes located at 134 West 24th Street New York, New York 10011-1902.

137. That between October 30, 2019 and February 26, 2020, defendant, Zen Bikes, had a duty to take reasonable measures to ascertain the identity of the person who allegedly stole a Specialized Sirrus Pro bicycle from their store known as Zen Bikes which was located at 134 West 24th Street New York, New York 10011-1902 before accusing the plaintiff, Matthew Norden, of doing so.

138. That between October 30, 2019 and February 26, 2020, defendant, Zen Bikes, by its employees, agents and/or servants, including but not limited to defendant, Joseph Garcia, accused the plaintiff, Matthew Norden, whom they had never met, of stealing a Specialized Sirrus Pro bicycle in broad daylight, during store hours, from their store known as Zen Bikes which was located 134 West 24th Street New York, New York 10011-1902 on October 30, 2019.

139. That from October 30, 2019 through February 26, 2020, defendant, Joseph Garcia, was over the age of 18 and resided in the State of New York.

140. That defendant, Joseph Garcia, currently resides in the State of New York.

141. That on October 30, 2019, defendant, John Keoshgerian, employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

142. That on November 27, 2019, defendant, John Keoshgerian, employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street

New York, New York 10011-1902.

143. That defendant, John Keoshgerian, currently employs defendant, Joseph Garcia.

144. That on October 30, 2019, defendant, Maria Ramos, employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

145. That on November 27, 2019, defendant, Maria Ramos, employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

146. That defendant, Maria Ramos, presently employs defendant, Joseph Garcia.

147. That on October 30, 2019, defendants, John Keoshgerian and Maria Ramos, jointly employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

148. That on November 27, 2019, defendants, John Keoshgerian and Maria Ramos, jointly employed defendant, Joseph Garcia, at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

149. That defendants, John Keoshgerian and Maria Ramos, currently jointly employ defendant, Joseph Garcia.

150. That prior to October 30, 2019, defendant, John Keoshgerian, hired and retained defendant, Joseph Garcia.

151. That prior to October 30, 2019, defendant, Maria Ramos, hired and retained defendant, Joseph Garcia.

152. That prior to October 30, 2019, defendant, John Keoshgerian, trained and supervised defendant, Joseph Garcia.

153. That prior to October 30, 2019, defendant, Maria Ramos, trained and supervised defendant, Joseph Garcia.

154. That prior to October 30, 2019, defendants, John Keoshgerian and Maria Ramos, trained and supervised, defendant, Joseph Garcia.

155. That on October 30, 2019, defendant, John Keoshgerian, supervised defendant, Joseph Garcia's, actions while defedant, Joseph Garcia, was working at the store known as Zen Bikes located at 134 West 24th Street New York, New York 10011-1902.

156. That on October 30, 2019, defendant, Maria Ramos, supervised defendant, Joseph Garcia's, actions while defedant, Joseph Garcia, was working at the store known as Zen Bikes located at 134 West 24th Street New York, New York 10011-1902.

157. That on October 30, 2019, defendant, John Keoshgerian, was working at the store known as Zen Bikes located at 134 West 24th Street New York, New

York 10011-1902.

158. That on October 30, 2019, defendant, Maria Ramos, was working at the store known as Zen Bikes located at 134 West 24th Street New York, New York 10011-1902.

159. That from October 30, 2019 through February 26, 2020, defendants, John Keoshgerian and Maria Ramos, had a duty and obligation to prevent their employee, Joseph Garcia, from filing a false claim with defendant, The City of New York, that a Specialized Sirrus Pro bicycle had been stolen from the store known as Zen Bikes at 134 West 24th Street New York, New York 10019-1902 on October 30, 2019.

160. That from October 30, 2019 through February 26, 2020, defendants, John Keoshgerian and Maria Ramos, had a duty and obligation to prevent their employee, Joseph Garcia, from filing a false claim with defendant, The City of New York, that a Specialized Sirrus Pro bicycle had been stolen by plaintiff, Matthew Norden, from the store known as Zen Bikes at 134 West 24th Street New York, New York 10019-1902 on October 30, 2019.

161. That on October 30, 2019, no one stole a Specialized Sirrus bicycle from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

162. That on October 30, 2019, between the hours of 9:00 A.M. and 5:00 P.M., plaintiff, Matthew Norden, was physically present, working at his job at Kellard Sessions at 500 Main Street Armonk, New York 10504 and had not set foot in the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

163. That on October 30, 2019, plaintiff, Matthew Norden, did not steal a Specialized Sirrus Pro bicycle from defendants, Ridgeback LLC, Zen Bikes, John Keosgerian or Maria Ramos.

164. That plaintiff, Matthew Norden, has never been in the Zen Bikes store located at 134 West 24th Street New York, New York 10011-902.

165. That defendant, Joseph Garcia, never met plaintiff, Matthew Norden.

166. That defendant, John Keoshgerian, never met plaintiff, Matthew Norden.

167. That defendant, Maria Ramos, never met plaintiff, Matthew Norden.

168. That there is no evidence that the plaintiff, Matthew Norden, on October 30, 2019, was at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

169. That there is no evidence that the plaintiff, Matthew Norden, who had never been in the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902 in his life, stole a Specialized Sirrus Pro bicycle from that store

on October 30, 2019.

170. That between October 30, 2019 and November 27, 2019, defendant, Zen Bikes, by its employee, Joseph Garcia, reported to defendant, THE CITY OF NEW YORK, that a bicycle known as a Specialized Sirrus Pro had been stolen from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902, on October 30, 2019 at 3:00 P.M.

171. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Zen Bikes, reported to defendant, THE CITY OF NEW YORK, that plaintiff, Matthew Norden, on October 30, 2019 at 3:00 P.M., had stolen a bicycle known as a Specialized Sirrus Pro from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-1902.

172. That between October 30, 2019 and November 27, 2019, defendant, Ridgeback LLC, by its employee, Joseph Garcia, reported to defendant, THE CITY OF NEW YORK, that a bicycle known as a Specialized Sirrus Pro had been stolen from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902, on October 30, 2019 at 3:00 P.M.

173. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Ridgeback LLC, reported to defendant, THE CITY OF NEW YORK, that plaintiff, Matthew Norden, on October 30, 2019 at 3:00 P.M., had stolen a bicycle known as a Specialized Sirrus

Pro from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-1902.

174. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Zen Bikes, with the knowledge and consent of defendants, John Keoshgerian and Maria Ramos, reported to defendant, THE CITY OF NEW YORK, that on October 30, 2019 at 3:00 P.M., a bicycle known as a Specialized Sirrus Pro had been stolen from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-1902.

175. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Ridgeback LLC, with the knowledge and consent of defendants, John Keoshgerian and Maria Ramos, reported to defendant, THE CITY OF NEW YORK, that on October 30, 2019 at 3:00 P.M., a bicycle known as a Specialized Sirrus Pro had been stolen from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-1902.

176. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Zen Bikes, with the knowledge and consent of defendants, John Keoshgerian and Maria Ramos, reported to defendant, THE CITY OF NEW YORK, that on October 30, 2019 at 3:00 P.M., the plaintiff, Matthew Norden, had stolen a bicycle known as a Specialized Sirrus Pro from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-

1902.

177. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Ridgeback LLC, with the knowledge and consent of defendants, John Keoshgerian and Maria Ramos, reported to defendant, THE CITY OF NEW YORK, that on October 30, 2019 at 3:00 P.M., the plaintiff, Matthew Norden, had stolen a bicycle known as a Specialized Sirrus Pro from defendant, Zen Bikes', store at 134 West 24th Street New York, New York 10011-1902.

178. That between October 30, 2019 and November 27, 2019, defendant, John Keoshgerian, reported to defendant, THE CITY OF NEW YORK, the theft of a bicycle known as a Specialized Sirrus Pro on October 30, 2019 at 3:00 P.M., from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902.

179. That between October 30, 2019 and November 27, 2019, defendant, John Keoshgerian, reported to defendant, THE CITY OF NEW YORK, the theft of a bicycle known as a Specialized Sirrus Pro on October 30, 2019 at 3:00 P.M. by the plaintiff, Matthew Norden, from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902.

180. That between October 30, 2019 and November 27, 2019, defendant, Maria Ramos, reported to defendant, THE CITY OF NEW YORK, the theft of a

bicycle known as a Specialized Sirrus Pro on October 30, 2019 at 3:00 P.M. from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902.

181. That between October 30, 2019 and November 27, 2019, defendant, Maria Ramos, reported to defendant, THE CITY OF NEW YORK, the theft of a bicycle known as a Specialized Sirrus Pro on October 30, 2019 at 3:00 P.M., by the plaintiff, Matthew Norden, from the defendant, Zen Bikes', store located at 134 West 24th Street New York, New York 10011-1902.

182. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, by its police department, including, but not limited to the members of its Facial Identification Section, Grand Larceny Division and defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, had a duty to adequately and competently investigate defendants, Ridgeback LLC's, Zen Bikes', Joseph Garcia's, John Keoshgerian's and/or Maria Ramos' allegation that on October 30, 2019 at 3:00 P.M., a Specialized Sirrus Pro bicycle had been stolen from the Zen Bikes store located at 134 West 24th Street New York, N.Y. 10011-1902 on October 30, 2019 at 3:00 P.M.

183. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, by its police department, including, but not limited to the members of its Facial Identification Section, Grand Larceny Division, and

defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, had a duty to adequately and competently investigate defendants, Ridgeback LLC's, Zen Bikes', Joseph Garcia's, John Keoshgerian's and/or Maria Ramos', allegation that on October 30, 2019 at 3:00 P.M., the plaintiff, Matthew Norden, had stolen a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street New York, N.Y. 10011-1902 on October 30, 2019 at 3:00 P.M.

184. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, assigned the claim of the plaintiff, Matthew Norden's, alleged theft of a Specialized Sirrus Pro bicycle from Zen Bikes, at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M. to its Grand Larceny Division.

185. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK's, Grand Larceny Division, Facial Identification Section and defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, had the responsibility of competently investigating, assessing and reviewing the claim made by defendants, Ridgeback LL, Zen Bikes,, Joseph Garcia, John Keoshgerian, and/or Maria Ramos, that a Specialized Sirrus Pro bicycle was stolen from Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M.

186. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK's, Grand Larceny Division, Facial Identification Section and defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, had the responsibility of competently investigating, assessing and reviewing the claim made by defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and/or Maria Ramos, that a Specialized Sirrus Pro bicycle was stolen from Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 by the plaintiff, Matthew Norden, on October 30, 2019 at 3:00 P.M.

187. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, by its Grand Larceny Division, Facial Identification Section and defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, had the responsibility of gathering and obtaining evidence that would prove and/or disprove the alleged theft by the plaintiff, Matthew Norden, of a Specialized Sirrus Pro bicycle from Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M and properly analyze it before arresting him, imprisoning him and prosecuting him for such alleged crime.

188. That between October 30, 2019 and November 27, 2019, defendant,

THE CITY OF NEW YORK, by its Grand Larceny Division, Facial Identification Section and defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, before arresting the plaintiff, Matthew Norden, for the alleged theft of a Specialized Sirrus Pro bicycle from Zen Bikes store on October 30, 2019, had the responsibility of first determining if the alleged theft ever occurred and whether or not the claim that a Specialized Sirrus Pro bicycle had been stolen from Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M by the plaintiff, Matthew Norden, was, in fact, a false one.

189. That on October 30, 2019 defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, Maria Ramos and Joseph Garcia, had a duty to obtain a valid photo ID and credit card from a customer and run the customer's credit card before letting such customer leave the Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 with a Specialized Sirrus Pro bicycle without paying for it.

190. That on October 30, 2019 defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, Maria Ramos, and Joseph Garcia, had a duty to take reasonable measures to avoid bicycle theft at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

191. That between October 30, 2019 and February 26, 2020, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, Maria Ramos and Joseph Garcia,

had a duty and obligation to avoid filing false reports for bicycle thefts with the defendant, THE CITY OF NEW YORK.

192. That on October 30, 2019, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, and Maria Ramos had the responsibility training their employee, defendant, Joseph Garcia, not make a false claim with the defendant, THE CITY OF NEW YORK, regarding the alleged theft of a Specialized Sirrus Pro bicycle by the plaintiff, Matthew Norden, from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M.

193. That on October 30, 2019, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, and Maria Ramos, had the responsibility of supervising their employee, defendant, Joseph Garcia, to ensure that he did not make a false claim with the defendant, THE CITY OF NEW YORK, regarding the alleged theft of a Specialized Sirrus Pro bicycle by the plaintiff, Matthew Norden, from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019 at 3:00 P.M.

194. That between October 30, 2019 and November 27, 2029, defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and Maria Ramos, had no evidence that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

195. That between October 30, 2019 and February 26 2020, defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian, and Maria Ramos, did not produce any evidence supporting their allegation that on October 30, 2019 the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

196. That on the morning of November 27, 2019: a) without having taken any steps to investigate and confirm whether or not a Specialized Sirrus Pro bicycle was stolen by the plaintiff, Matthew Norden, from the Zen Bikes store located at 134 West 24th Street New York, New York 10019-1902 on October 30, 2019 at 3:00 P.M; b) without having obtained any corroborating evidence of such theft from defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian, and Maria Ramos, c) without having obtained a physical description of the person who allegedly stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902; d) without having ever previously spoken to the plaintiff, Matthew Norden; and e) without probable cause or exigent circumstances; the defendant, THE CITY OF NEW YORK, by its police department, including but not limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, the members of the Grand Larceny Division and the Facial Identification Section, recklessly, negligently and/or intentionallly falsely arrested and falsely imprisoned the plaintiff, Matthew

Norden.

197. That between November 27, 2019 and February 26, 2020 : a) without having taken any steps to investigate and confirm whether or not a Specialized Sirrus Pro bicycle was stolen by the plaintiff, Matthew Norden, from the Zen Bikes store located at 134 West 24th Street New York, New York 10019-1902 on October 30, 2019 at 3:00 P.M; b) without having obtained any corroborating evidence of such theft from defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian, and Maria Ramos; c) without having obtained a physical description of the person who allegedly stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902; d) without having ever previously spoken to the plaintiff, Matthew Norden; and e) without probable cause or exigent circumstances,, the defendant, THE CITY OF NEW YORK, by its police department, including but not limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, the members of the Grand Larceny Division and the Facial Identification Section, maliciously prosecuted the plaintiff, Matthew Norden charging him with Petit Larceny P.L.§ 155.25 and Criminal Possession of Stole Property P.L. §165.40.

198. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee, of defendant, Zen Bikes and/or Ridgeback LLC, in violation of Penal Law Setction § 240.50 (A)(3)(a), intentionally filed a blatantly

false claim with the defendant, THE CITY OF NEW YORK's, police department, that a Specialized Sirrus Pro bicycle had been stolen from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

199. That between October 30, 2019 and November 27, 2019, defendant, Joseph Garcia, as an employee of defendant, Zen Bikes and/or Ridgeback LLC, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

200. That between October 30, 2019 and November 27, 2019, defendant, John Keoshgerian, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with the defendant, THE CITY OF NEW YORK's police department, that a Specialized Sirrus Pro bicycle had been stolen from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

201. That between October 30, 2019 and November 27, 2019, defendant, John Keoshgerian, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that the plaintiff, Matthew Norden, stole a Specialized

Sirrus Pro bicycle from defendant, ZEN BIKES' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

202. That between October 30, 2019 and November 27, 2019, defendant, Maria Ramos, in violation of Penal Law Setction § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with the defendant, THE CITY OF NEW YORK's police department, that a Specialized Sirrus Pro bicycle had been stolen from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

203. That between October 30, 2019 and November 27, 2019, defendant, Maria Ramos, in violation of Penal Law Setction § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

204. That between October 30, 2019 and November 27, 2019 defendant, Ridgeback LLC, by defendants, Joseph Garcia, John Keoshgerian, and/or Maria Ramos, in violation of Penal Law Setction § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that a Specialized Sirrus Pro bicycle had been stolen from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019

at 3:00 P.M.

205. That between October 30, 2019 and November 27, 2019, defendant, Ridgeback LLC, by defendants, Joseph Garcia, John Keoshgerian and/or Maria Ramos, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

206. That between October 30, 2019 and November 27, 2019 defendant, Zen Bikes, by defendants, Joseph Garcia, John Keoshgerian, and/or Maria Ramos, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that a Specialized Sirrus Pro bicycle had been stolen from defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

207. That between October 30, 2019 and November 27, 2019, defendant, Zen Bikes, by defendants, Joseph Garcia, John Keoshgerian and/or Maria Ramos, in violation of Penal Law Section § 240.50 (A)(3)(a), intentionally filed a blatantly false claim with defendant, THE CITY OF NEW YORK's police department, that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from

defendant, Zen Bikes' store at 134 West 24th Street New York, New York on October 30, 2019 at 3:00 P.M.

208. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, by its police department, including, but limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, the members of the police department's Grand Larceny Division, and the members of the police department's Facial Identification Section, negligently and recklessly failed to take any steps or measures to determine the veracity of defendants, Ridgeback LLC's, Zen Bikes', Joseph Garcia's, John Keoshgerian's and/or Maria Ramos', claim that on October 30, 2019 at 3:00 P.M., a Specialized Sirrus Pro bicycle had been stolen from Zen Bikes at 134 West 24th Street New York, New York 10011-1902, before negligently and/or recklessly falsely arresting and falsely imprisoning the plaintiff, Matthew Norden, for such alleged theft.

209. That between October 30, 2019 and November 27, 2019, defendant, THE CITY OF NEW YORK, by its police department, including, but limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, the members of the police department's Grand Larceny Division and the members of the police department's Facial Identification Section, negligently and recklessly failed to request or obtain from defendants, Zen Bikes, Ridgeback LLC, Joseph Garcia, John

Keoshgerian or Maria Ramos, any actual evidence of the theft of a Specialized Sirrus Pro bicycle from ZEN BIKES at 134 West 24th Street New York, New York 10011-1902 at 3:00 P.M. on October 30, 2019, before negligently and/or recklessly falsely arresting and falsely imprisoning the plaintiff, Matthew Norden, for such alleged theft.

210. That between October 30, 2019 and November 27, 2019, the defendant, THE CITY OF NEW YORK, by its police department, including, but limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, the members of the police department's Grand Larceny Division, and the members of its Facial Identification Section, negligently and recklessly failed to perform any investigation into the veracity of defendants, Ridgeback LLC's, Zen Bikes', Joseph Garcia's, John Keoshgerian's and/or Maria Ramos', fabricated and obviously false claim that the plaintiff, Matthew Norden, who had never been to the Zen Bikes store at 134 West 24th Street New York, New York 10011-1902, stole a Specialized Sirrus Pro bicycle from that store on October 30, 2019 at 3:00 P.M., before negligently and/or recklessly falsely arresting and falsely imprisoning the plaintiff, Matthew Norden, for such alleged theft.

211. That between October 30, 2019 and on November 27, 2019, the defendant, THE CITY OF NEW YORK, by its police department, including, but limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD

#12804), TAX ID # 953441, the members of the police department's Grand Larceny Division and the members of the police department's Facial Identification Section, negligently and recklessly failed to ever contact the plaintiff, Matthew Norden, to ascertain his whereabouts on October 30, 2019 between 2:00 P.M. and 4:00 P.M. before recklessly and/or negligently falsely arresting and falsely imprisoning him on November 27, 2019, on the basis of the patently false and undeniably fabricated claim made by defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and/or Maria Ramos, that the plaintiff, Matthew Norden, who had never been in their store, stole a Specialized Sirrus Pro bicycle on October 30, 2019 at 3:00 P.M., from Zen Bikes at 134 West 24th Street New York, New York 10011-1902.

212. That between November 27, 2010 to February 26, 2020, defendant, THE CITY OF NEW YORK, by and through the members of its police department, including but not limited to the members of the Grand Larceny Division, defendant, POLICE OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441 and the members of the police department's Facial Identification Section, maliciously prosecuted the plaintiff, Matthew Norden, charging him with Petit Larceny P.L. § 155.25 and Criminal Possession of Stolen Property P.L. § 165.40 despite having no credible verified evidence that the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West

24th Street New York, New York 10011-1902 on October 30, 2019.

213. That between November 27, 2019 and February 26, 2020, defendant, THE CITY OF NEW YORK, by and through the members of its police department, including but not limited to the members of the Grand Larceny Division, defendant, POLICE OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441, and the members of the police department's Facial Identification Section, negligently and recklessly failed to investigate and/or take any steps to verify defendants', Ridgeback LLC's, Zen Bikes', Joseph Garcia's, John Keoshgerian's and/or Maria Ramos', patently false claim that a Specialized Sirrus Pro bicycle had been stolen by the plaintiff, Matthew Norden, from the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902 on October 30, 2019, and as a result, maliciously prosecuted the plaintiff, Matthew Norden, charging him with him with Petit Larceny P.L. § 155.25 and Criminal Possession of Stole Property P.L. §165.40.

214. That on February 26, 2020, the criminal charges of Petit Larceny P.L. § 155.25 and Criminal Possession of Stole Property P.L. §165.40., that the defendants herein collectively recklessly, negligently and maliciously proximately caused to be lodged against the plaintiff, Matthew Norden, were dismissed.

215. That prior to November 27, 2019 and up to the present, the defendant, THE CITY OF NEW YORK, negligently hired and retained defendant, POLICE

OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441.

216. That prior to November 27, 2019 and up to February 26, 2020, the defendant, THE CITY OF NEW YORK, negligently trained defendant, POLICE OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441.

217. That from October 30, 2019 to February 26, 2020, the defendant, THE CITY OF NEW YORK, negligently supervised defendant, POLICE OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441.

218. That on or prior to November 27, 2019, defendant, POLICE OFFICER JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441, intentionally filed false paperwork which proximately caused the plaintiff, Matthew Norden, to be falsely arrested and falsely imprisoned on November 27, 2019 and is therefore liable to plaintiff for punitive damages.

219. That between October 30, 2019 and November 27, 2019, defendant, JEFFREY STAGGERS, (SHIELD #12804), TAX ID # 953441, intentionally filed false reports which proximately caused the plaintiff, Matthew Norden, to be maliciously prosecuted and is therefore liable to the plaintiff for punitive damages.

220. That prior to November 27, 2019 and up to February 26, 2020, the defendant, THE CITY OF NEW YORK, when creating the Grand Larceny Division of its police department, negligently failed to create guidelines, procedures, standards, protocalls, minimum requirements and safeguards mandating measures,

practices and policies that would have, if followed, prevented the negligent and reckless false arrest, false imprisonment and malicious prosecution of the plaintiff, Matthew Norden.

221. That prior to November 27, 2019 and up to February 26, 2020, the defendant, THE CITY OF NEW YORK, negligently failed to take any steps to ensure that the Grand Larceny Division of its police department, would not falsely arrest, falsely imprison and maliciously prosecute persons such as the plaintiff, Matthew Norden, herein, who was/were completely innocent of any wrongdoing

222. That prior to November 27, 2019 and up to February 26, 2020, the defendant, THE CITY OF NEW YORK, when creating the Facial Identification Section of its police department, negligently failed to create guidelines, procedures, standards, protocalls, minimum requirements and safeguards mandating measures, practices and policies that would have, if followed, prevented the negligent and reckless false arrest, false imprisonment and malicious prosecution of the plaintiff, Matthew Norden.

223. That prior to November 27, 2019 and up to February 26, 2020, the defendant, THE CITY OF NEW YORK, negligently failed to take any steps to ensure that the Facial Identification Section of its police department, would not misidentify an innocent person such as the plaintiff, Matthew Norden, as the perpetrator of a crime, and by such misidentification, proximately cause such

person's false arrest, false imprisonment and malicious prosecution.

224. That between October 30, 2019 and November 27, 2019, defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian, and Maria Ramos, in violation of New York State Penal Law § 240.50 (A)(3)(a), negligently made a false report to defendant, THE CITY OF NEW YORK, that on October 30, 2019, the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from the Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 and such negligent false report being made proximately caused the plaintiff, Matthew Nordeon, to be falsely arrested, falsely imprisoned and maliciously prosecuted and are therefore liable to plaintiff for punitive damages.

225. That between October 30, 2019 and November 27, 2019, defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and Maria Ramos, in violation of New York State Penal Law § 240.50 (A)(3)(a) intentionally made a false report to defendant, THE CITY OF NEW YORK, that on October 30, 2019, the plaintiff, Matthew Norden, stole a Specialized Sirrus Pro bicycle from the Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 and such fabrication proximate caused the plaintiff, Matthew Norden, to be be falsely arrested, falsely imprisoned and maliciously prosecuted and are therefore liable to the plaintiff for punitive damages.

226. That between October 30 ,2019 and February 26, 2020, defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and Maria Ramos, knew that their claim that the plaintiff, Matthew Norden, had stolen a Specialized Sirrus Pro bicycle from their store on October 30, 2019, was a false one, but maliciously refused to ever retract, disavow or withdraw such false allegation proximately causing the plaintiff, Matthew Norden, to be falsely arrested, falsely imprisoned and maliciously prosecuted as a result thereof subjecting them to punitive damages.

227. That on October 30, 2019 defendants, Ridgeback LLC, Zen Bikes, Joseph Garcia, John Keoshgerian and Maria Ramos, negligently failed to obtain and verify a patron's valid photo ID and run his credit card before letting that person allegedly walk out of the Zen Bikes store at 134 West 24th Street New York, New York 10011-1902 with an expensive Specialized Sirrus Pro bicycle without paying for it.

228. That on October 30, 2019 defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian, Maria Ramos and Joseph Garcia negligently failed to take reasonable measures to avoid bicycle theft at the Zen Bikes store located at 134 West 24th Street New York, New York 10011-1902.

229. That prior to October 30, 2019 and up to and including February 26, 2020, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian and Maria Ramos,

negligently hired and retained defendant, Joseph Garcia.

230. That prior to October 30, 2019 and up to February 26, 2020, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian and Maria Ramos, negligently supervised defendant, Joseph Garcia.

231. That on October 30, 2019 through February 26, 2020, defendants, Ridgeback LLC, Zen Bikes, John Keoshgerian and Maria Ramos, negligently failed to prevent their employee, defendant, Joseph Garcia, from making a false claim that the plaintiff, Matthew Norden, had stolen a Specialized Sirrus Pro bicycle from their store at 134 West 24th Street New York, New York on October 30, 2019.

232. That from November 27, 2019 through February 26, 2020, defendants, THE CITY OF YORK, by its police department, the members of the police department's Grand Larceny Division, including, but not limited to defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, and the members of the police department's Facial Identification Section, maliciously pursued a criminal action against the plaintiff bearing Docket # CR-037616-19NY Criminal Court at 100 Centre Street New York, New York and charged him with Petit Larceny P.L. § 155.25 and Criminal Possession of Stole Property P.L. § 165.40, with full knowledge that the aforesaid charges were false, had no merit, and should never have been brought.

233. That from November 27, 2019 through February 26, 2020, defendant,

POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, fabricated evidence that proximately caused the false arrest, false imprisonment and malicious prosecution of the plaintiff and is therefor liable to the plaintiff, Matthew Norden, for punitive damages.

234. That from November 27, 2019 through February 26, 2020, defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, intentionally caused criminal charges of Petit Larceny P.L. §155.25 and Criminal Possession of Stolen Property P.L. § 165.40, that he knew or had reason to know, to be completely false, to be brought against the plaintiff, Matthew Norden, anyway and is therefore liable to the plaintiff, Matthew Norden, for punitive damages.

235. That on October 30, 2019, no one stole a Specialized Sirrus Pro bicycle from the Zen Bikes store located at 134 West 24th Street. New York, New York 10011-1902.

236. That the defendants by their collective negligence and/or recklessness, as set forth herein above, violated the plaintiff, Matthew Norden's, civil rights pursuant to 42 USCA 1983.

237. That the defendants by their collective negligence and/or recklessness, caused the plaintiff, Matthew Norden, to incur expenses in hiring an attorney to represent him and defend him against the false charges brought against him, and are liable to the plaintiff Matthew Norden, for such expenses.

238. That the defendants acted in a willful, wanton, reckless, unlawful, unreasonable, unconscionable manner displaying a flagrant disregard of the plaintiff, Matthew Norden's, rights, privileges, welfare and well-being, entitling the plaintiff to exemplary and punitive damages in such amount as the Court may find just and proper.

239. That the acts complained of herein were carried out by defendant, POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, in his capacity as a police officer pursuant to the customs, policies, usages, practices, procedures and rules of the defendant, THE CITY OF NEW YORK, all under the supervision of ranking officers of the Police Department of the defendant, **THE CITY OF NEW YORK.**

240. That defendants, THE CITY OF NEW YORK and POLICE OFFICER JEFFREY STAGGERS (SHIELD #12804), TAX ID # 953441, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of the plaintiff, Matthew Norden.

241 That all of the foregoing acts by defendants cited above herein deprived the plaintiff, Matthew Norden, of his federally protected rights, including,, but not limited to, the right:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from unreasonable search and seizure under the

Fourth and Fourteenth Amendments to the United States Constitution;

c) To be protected against violations of his civil and constitutional rights;

d) Not to have cruel and unusual punishment imposed upon him; and

e) To receive equal protection under the law.

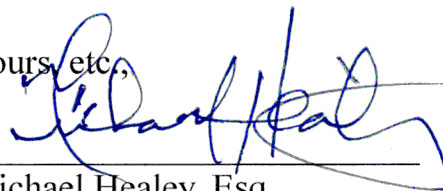
242. That defendants herein are jointly and severally liable to the plaintiff.

243. That by reason of the foregoing, the plaintiff, Matthew Norden, was damaged in the amount in excess of the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff, Matthew Norden, demands judgment against the defendants in the sum in excess of the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, on the First cause of Action; together with the costs and disbursements of this action.

Dated: New York, New York
January 12, 2021

Yours, etc.,



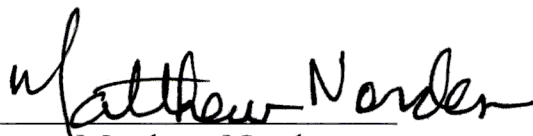
Michael Healey, Esq.
CALLAN & BYRNES, LLP.
Attorneys for Plaintiff(s)
Matthew Norden
225 Broadway 41st Floor
New York, New York 10007
(212) 233-8070

VERIFICATION

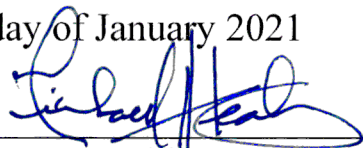
State of New York :
SS:.
County of New York :

I, Matthew Norden, being over the age of 18 and residing in the County and State of New York, do hereby swear to the truth of the following:

That I am the plaintiff in the within action. That I have read the attached Verified Amended Complaint attached hereto and know the contents thereof to be true.


Matthew Norden

Sworn to before me on this 12th
day of January 2021


Notary Public

MICHAEL HEALEY
Notary Public, State of New York
No. 2HE6004377
Qualified in Queens County
Commission Expires March 23, 2022

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

MATTHEW NORDEN,

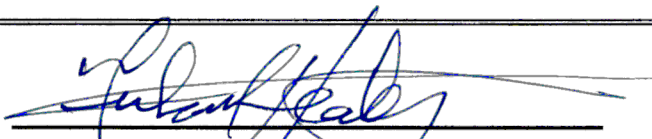
Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JEFFREY
STAGGERS (SHIELD #12804), TAX ID # 953441, RIDGEBACK
LLC, ZEN BIKES, JOHN KEOSHGERIAN, MARIA RAMOS AND
JOSEPH GARCIA,

Defendants.

SUPPLEMENTAL SUMMONS AND VERIFIED AMENDED COMPLAINT



Michael Healey, Esq.

CALLAN & BYRNES, LLP

Attorneys for Plaintiff

Matthew Norden

225 Broadway, 41st Floor

New York, New York 10007

(212) 233-8070